



File No.: RR/00445/2022

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by GYMOOGIMNASIOS S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 21, 2022, and based on the following

FACTS

FIRST: On June 21, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file RR/00445/2022, by virtue of which GYMOOGIMNASIOS S.L. was imposed a fine of €5,000 (five thousand euros) for each of the infractions of Articles 5.1.c) and 7 of the GDPR, classified under Article 83.5.a) of the GDPR.

This resolution was notified to the appellant on June 22, 2022, following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00457/2021, the following was recorded:

FIRST. On December 10, 2020, a document from the complainant was received by the AEPD stating that at the San Benito sports center in San Cristóbal de la Laguna, dependent on the City Council of La Laguna, a system for reserving access to the facilities has been implemented through an application, in which it is mandatory to give consent for the use of personal data, including health-related data, in order to register.

SECOND. A copy of the complainant's ID was submitted.

THIRD. On October 11, 2019, the complainant contacted the Autonomous Sports Organization via email indicating that: "Starting this October, a modality has been launched at the San Benito sports center to participate in some activities that requires user registration on a platform called Mywellness Cloud, from the company Technogym. The center sends you an invitation to an email address you provide for the different activities.

This application allows you to make reservations conveniently without having to go to the center to do so.

They also provide the opportunity to make reservations at the center, for which they sell an electronic device for the price of €1, but it is also necessary to receive the invitation by email and register.

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28001 – Madrid

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2/23

The reason for my email is that when registering on the aforementioned platform Mywellness Cloud of the company Technogym, it provides two options that must be marked with a check if desired; these are basically the following:

1. Accept the transfer of medical data among other things.
2. Accept the sending of advertising advice.

What is surprising is that option 1 is not an option because if it is not marked, registration is not allowed, and therefore the application cannot be downloaded.

I have contacted the person in charge of the center (...) who kindly attended to me and consulted with the company about the possibilities. Finally, he called me to inform me that no changes could be made. He proposed to me, with his best intention, a possibility that is not acceptable to me because all that achieves is to hide the problem and not comply with the mandatory LOPD.

It is not the purpose of my writing to analyze what happens with our personal data, whether health-related, economic, or habitual, and how it affects us, but what is unacceptable is that the center

forces us to transfer data to third parties if we do not want to; this is, from my point of view, a flagrant violation of the LOPD.

(...)"

The agency responded the same day in the following terms: "The Autonomous Sports Agency does not manage the Sports Complexes, which are run by an external company that, as you rightly did, communicated this to the person in charge of that company since they are the ones who installed that program and not us. In any case, I will forward this email to the Technicians of the Agency for their information."

FOURTH. The claimant in a letter dated 01/24/2022 has stated regarding the reservation of activities at the center that "The reservation system is through an APP remotely and physically at the sports center with a wrist device. In both cases, a registration must be completed in which IT IS MANDATORY TO ACCEPT THE TRANSFER OF HEALTH DATA."

FIFTH. The claimant has provided a screenshot of the form to create a new account on mywellness.com, as indicated in the previous email. Thus, it states the following:

"I have read and understood the Privacy Policy

(<https://www.mywellness.com/sanbenito/Terms/Privacy>) and the Terms of Use

(<https://www.mywellness.com/sanbenito/Terms/Conditions>)

I hereby give my consent for the use of my confidential health-related data for the purposes of service provision*.

I authorize the processing of my personal data for marketing and advertising purposes, even in collaboration with third parties.

*Mandatory

SIXTH. The claimant submitted a Complaint Form on 10/17/2019 regarding the same facts to the General Directorate of Consumer Affairs of the Ministry of Economy, Industry, Commerce, and Knowledge of the Government of the Canary Islands.

The response dated 03/04/2020 from the General Directorate of Consumer Affairs was that the complaint "suggests indications that may imply a violation of Law 15/1999, of December 13, on the Protection of Personal Data."

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3/23

SEVENTH. The respondent has submitted a Deed of Assignment of Administrative Contract signed by the entity La Laguna Gestión Activa Ute on 21/09/2005 for the operation of the Sports Complexes of the San Cristóbal de La Laguna City Council.

EIGHTH. The respondent has provided a copy of the contract signed with TECHNOGYM TRADING S.A. dated 22/01/2019.

NINTH. On the webpage titled "Create a new Mywellness account" with the URL

<https://mywellness.com/sanbenito/User/RegisterUser/> it states:

"At FITNESS 4 ALL SAN BENITO we use Technogym's mywellness cloud to manage your wellness lifestyle.

Improving health and becoming more active is now easier than ever.

mywellness allows you to access your fitness and lifestyle data, your training programs, and much more on the go, anywhere in the world.

What can mywellness do for you?

Log in on a connected Technogym device, access your apps and your personalized content, and get your workouts started automatically according to your program.

Manage your training program directly on the web or from your mobile phone.

Record your body measurements and track your health status.

Connect mywellness with popular nutritional and fitness tracking apps and devices like Polar, Garmin, Apple Health, RunKeeper, Strava, Mapmyfitness, and many more.

Record and share all your movement, outdoor sports, and indoor training data with your coach to

achieve a truly personalized program.

To access this incredible experience, you just need to create your personal mywellness account and share your data with FITNESS 4 ALL SAN BENITO.”

TENTH. In response dated 02/09/2021 to the request made by the acting inspector, the respondent stated:

“1 – Purpose of Health Data Processing. The data required in the My Wellnes app form aims to provide correct feedback to the user about their physical activity, as calories or the relative weight to be managed on machines, among other parameters, depend on this data: sex, age, weight, build.

2 – User Account: to make reservations in My Wellnes, you must have a user account and therefore register for it; there is no option B.”

ELEVENTH. A privacy document related to the processing of personal data within the Mywellnes Service has been submitted.

THIRD: The appellant submitted a request for reconsideration on 20/07/2022 to this Spanish Agency for Data Protection, basing it primarily on allegations already made and also that the dispositive part of the resolution does not include the typification for the purposes of the LOPD-GDD; that the resolution generates defenselessness; that Article 5.1.c) of the GDPR has not been violated, as the processing of personal data carried out on its users is “adequate, relevant, and limited to what is necessary” and regarding the violation of Article 7 of the GDPR, users of the services are not obliged to consent to the processing of sensitive data.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Grounds II to IX of the contested Resolution, as transcribed below:

“II

The reported facts are specified in that the respondent has implemented a reservation system for access to the facilities through an application and that to register in it, users are required to give consent regarding personal data, including health-related data.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;

(...)”

First, the respondent is accused of violating Article 5 of the GDPR, Principles relating to processing, paragraph c) which establishes:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

(...)”

III

1. The documentation in the file provides clear indications that the respondent violated Article 5 of the GDPR, principles relating to the processing,

C/ Jorge Juan, 6

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treatment, by establishing as a condition for access and use of the facilities the transfer of personal data, including health-related data, and opening an account at mywellness.com, without any justification.

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c), it refers to the principle of data minimization, indicating that data must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they can only be collected when they are going to be processed and that they can only be used for the purpose for which they were collected, but not for any other objective or purpose.

In this same sense, Recital 39 states that:

“(39) All processing of personal data must be lawful and fair. For natural persons, it must be completely clear that personal data concerning them are being collected, used, consulted, or otherwise processed, as well as the extent to which such data are or will be processed. The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that plain and clear language be used. This principle particularly refers to the information of the data subjects about the identity of the data controller and the purposes of the processing, and to the additional information to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that are subject to processing. Natural persons must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as how to assert their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection.

Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that their retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing could not reasonably be achieved by other means. To ensure that personal data is not retained longer than necessary, the data controller must establish deadlines for their deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted. Personal data must be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing” (the underlining is by the AEPD).

It is considered that the respondent has violated the principle of minimization since the processing of the confidential health data of gym users for access to various activities with their consequent reservation through the mywellness service, being the only way to access the offered services, implies the use of data in a disproportionate and excessive manner in relation to the determined scope and purposes, in violation of Article 5.1 c) of the GDPR. And the same objective could be...

C/ Jorge Juan, 6

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achieved through other means that are not so invasive to the privacy of users.

2. In the present case, the defendant and TECHNOGYM entered into a framework contract signed on 01/22/2019, under which the latter provided the defendant with its services to be made available to him and his users or clients, among which is the use of the mywellness application.

Under the aforementioned contract, regarding the processing of personal data, the defendant is considered the data controller while TECHNOGYM will process the data as the data processor.

This service was implemented by the defendant; however, it was necessary, as stated on the webpage titled “Create a new Mywellness account” with the URL

<https://mywellness.com/sanbenito/User/RegisterUser/>, to create a personal mywellness account and

share personal data with the defendant.

One of the uses of the aforementioned application is participation in activities scheduled by the center by reserving them in advance, for which user registration in the Mywellness Cloud service is required. In this way, the center sends you an invitation to an email address that you provide in the form at the time of registration.

However, the use of the application and access to the services it provides is only possible if you give mandatory consent for the use of confidential health-related data.

This is stated in the account creation form where the following appears:

"I have read and understood the Privacy Policy

(<https://www.mywellness.com/sanbenito/Terms/Privacy>) and the Terms of Use

(<https://www.mywellness.com/sanbenito/Terms/Conditions>)

I hereby give my consent for the use of my confidential health-related data for the purposes of providing the service*.

I authorize the processing of my personal data for marketing and advertising purposes, even in collaboration with third parties.

*Mandatory"

The defendant argues in a document dated 09/02/2021 regarding the purpose of processing health data that "The data required in the My Wellnes app form aims to provide correct feedback to the user about their physical activity, as calories, or the weight to be managed on machines, among other parameters, depend on this data; sex, age, weight, build."

And regarding the creation of the user account, "to be able to make reservations in My Wellnes, one must have a user account and therefore register for it; there is no option B."

This confirms what the claimant states when he expresses that: "I contacted the person in charge of the center (...) who kindly attended to me and consulted with the company about the possibilities.

Finally, he called me to inform me that changes could not be made. He proposed to me, with his best intentions, a possibility that is not acceptable to me as all that achieves is to hide the problem and not comply with the mandatory LOPD."

C/ Jorge Juan, 6

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28001 – Madrid

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7/23

On the other hand, it is true that the respondent has stated that reservations and access to activities can be made in person at the sports center, without any electronic device being available; but it is also true that the claimant indicated in a written document dated 01/22/2022 that the reservation system is through an application both remotely and in person at the center with a wrist device, but that in both cases it is mandatory to complete a registration where the transfer of health data must be accepted.

Therefore, the processing of health-related data is excessive for the intended purpose of registering for the Mywellness Service and being able to make reservations for activities at the center.

3. Article 5.1.c) enshrines the principle of data minimization and implies that the processing of personal data must be adjusted and proportional to the purpose for which it is directed, clearly determining the purposes for which the data is collected and processed, and restricting the processing of those that are excessive or proceeding to their deletion.

Likewise, the relevance in the processing of data must occur both in the collection phase and in the subsequent processing that is carried out.

However, the system used by the respondent is relevant when assessing the interference with the fundamental right to data protection. It should be noted that the GDPR limits the use or processing of data by necessity and not by excess; that is, personal data must be adequate, necessary, relevant, and limited to the need for which they were collected.

Previously, the Constitutional Court jurisprudence has established that if the objective can be achieved without processing data, then such data should not be processed.

On the other hand, this limitation to what is necessary must be evaluated both from a quantitative perspective (volume of data processed) and qualitative (category of data processed). In this same

sense, Recital 39 states that "...This requires, in particular, ensuring that its retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means..."

IV

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to penalties, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

C/ Jorge Juan, 6

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28001 – Madrid

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8/23

Y in its article 72, considers for the purposes of prescription, that they are:

"Infringements considered very serious:

1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

V

Secondly, the respondent is charged with the violation of Article 7, Conditions for Consent, of the GDPR, which states:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also refers to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from other matters, intelligible and easily accessible, and using clear and plain language. No part of the declaration that constitutes a violation of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving their consent, the data subject shall be informed of this. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract" (the underlining corresponds to the AEPD).

Article 4 of the GDPR, Definitions, in its paragraphs 2 and 11, states:

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

C/ Jorge Juan, 6

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28001 – Madrid

9/23

“11) ‘consent of the data subject’: any freely given, specific, informed and unambiguous indication of the data subject's wishes by which they signify their agreement, by a statement or by a clear affirmative action, to the processing of personal data concerning them.”

Article 5, Principles relating to processing, of the GDPR provides:

“1. Personal data shall be:

a) processed lawfully, fairly and in a transparent manner in relation to the data subject (‘lawfulness, fairness and transparency’);

(...)”

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘accountability’).”

Article 6, Lawfulness of processing, of the GDPR establishes:

“1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

(...)”

Article 9, Processing of special categories of personal data, establishes:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation shall be prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

a) the data subject has given explicit consent to the processing of those personal data for one or more specified purposes, except when Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

(...)”

Recitals 32 and 42 of the GDPR state:

“(32) Consent should be given by means of a clear affirmative act that reflects the data subject's free, specific, informed and unambiguous indication of their wishes to accept the processing of personal data concerning them, such as a written statement, including by electronic means, or a verbal statement. This could include ticking a box on an internet website, choosing technical parameters for the

C/ Jorge Juan, 6

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28001 – Madrid

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10/23

use of information society services, or any other statement or conduct that clearly indicates in this context that the data subject accepts the proposal for the processing of their personal data. Therefore, silence, pre-checked boxes, or inaction should not constitute consent. Consent must be given for all processing activities carried out for the same or the same purposes. When processing has multiple purposes, consent must be obtained for all of them. If the data subject's consent is to be given as a result of a request made by electronic means, the request must be clear, concise, and not unnecessarily disrupt the use of the service for which it is provided.

(...)”

(42) When processing is carried out with the consent of the data subject, the data controller must be able to demonstrate that the data subject has given their consent to the processing operation. In particular, in the context of a written declaration made on another matter, there must be guarantees that the data subject is aware of the fact that they are giving their consent and to what extent they are doing so. In accordance with Council Directive 93/13/EEC, [of April 5, 1993, on unfair terms in contracts concluded with consumers (OJ 1993, L 95, p. 29),] a model consent declaration must be

provided, prepared in advance by the data controller, with intelligible and easily accessible wording that uses clear and simple language, and that does not contain unfair clauses. For consent to be informed, the data subject must at least know the identity of the data controller and the purposes of the processing for which the personal data are intended. Consent should not be considered freely given when the data subject does not have genuine or free choice or cannot deny or withdraw their consent without suffering any detriment.

VI

It should be noted that in the case examined and as stated in previous grounds, the data controller has implemented a system for reserving scheduled activities at the sports center through an application, which requires acceptance of consent for the use of health data.

In the form provided to create a new Mywellnes account, in which an email address must be provided through which the reservation is communicated to the center and which subsequently sends confirmation of the reservation, there is a mandatory checkbox stating:

I hereby give my consent for the use of my confidential health-related data for the purposes of providing the service.

Firstly, the definition of consent is found in Article 4.11 of the GDPR as any manifestation of free, specific, informed, and unambiguous will by which the data subject accepts, either by a declaration or a clear affirmative action, the processing of personal data concerning them.

On the other hand, in accordance with what is stated in Article 6 of the GDPR, consent is one of the legitimate bases on which a data controller can carry out the processing of personal data. Thus, for the processing to be valid, a series of requirements must be met, and,

C/ Jorge Juan, 6

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28001 – Madrid

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11/23

Furthermore, the responsible party must be able to demonstrate that the data subject consented to the processing of their personal data.

The specially protected data collected in Article 9 as special categories of data are as follows: ethnic or racial origin, political opinions, religious or philosophical beliefs, trade union affiliation, genetic data, biometric data, data related to health, and data related to the life or sexual orientation of an individual.

In these cases, the legitimizing bases set forth in Article 6 would not be applicable, with Article 9 of the GDPR establishing new circumstances under which such processing would be lawful.

Thus, the first possibility for processing specially protected data is “explicit consent” as stated in its paragraph 2, letter a). Therefore, for the processing of this type of data, an express declaration from the data subject must be provided. Additionally, it would be necessary to retain proof of such consent, as Article 7 of the GDPR establishes that the responsible party must be able to demonstrate that they obtained the consent of the data subject. This is why, if we are relying on the legitimizing basis of consent, we must prove its acquisition.

Moreover, in relation to the cited articles, consideration (32) of the GDPR must be taken into account, as it indicates that:

“Consent must be given by means of a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them... Therefore, silence, pre-ticked boxes, or inactivity should not constitute consent. Consent must be given for all processing activities carried out for the same or similar purposes. When processing has multiple purposes, consent must be given for all of them...”

Likewise, Article 6.2 and 3 of the LOPDGDD states, regarding processing based on consent, that:

“2. When the processing of data is intended to be based on the consent of the affected party for multiple purposes, it must be specifically and unequivocally stated that such consent is granted for all of them.

3. The execution of the contract may not be conditioned on the affected party consenting to the processing of personal data for purposes that are not related to the maintenance, development, or control of the contractual relationship.”

Well then, according to all that has been expressed above, in the present case, the processing of personal data requires the existence of a legal basis that legitimizes it, such as, in this case, the existing contractual relationship.

However, if the entity also wishes to carry out processing of special categories of personal data, such as health data, it must also validly and expressly obtain the consent provided. It is therefore not valid to mandatorily check the acceptance box in the Mywellnes account application form in order to make reservations for activities at the sports center without giving the user the option to grant free and individualized consent.

C/ Jorge Juan, 6
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12/23

In this case, consent is not free as it is a linked consent; the free nature of that consent seems more than doubtful due to the fact that in the event of a denial of the same, deviating from the normal mandatory dialing procedure, it would lead to the impossibility of registration, preventing the download of the application and raising the requirement that the client must mandatorily declare that they consent to the use of their confidential health-related data for the purposes of service provision. It should not be forgotten that the claimant contacted the person responsible for the center who informed them that no changes could be made, "They proposed to me with their best intention a possibility that is unacceptable to me as all that achieves is to hide the problem and not comply with the mandatory LOPD."

Recital 42 of the GDPR states that "consent should not be considered freely given when the data subject does not have genuine or free choice or cannot refuse or withdraw consent without suffering any detriment."

Recital 43 of the same regulation also states that "To ensure that consent has been freely given, it should not constitute a valid legal basis for the processing of personal data in a specific case where there is a clear imbalance between the data subject and the data controller, particularly when the controller is a public authority and it is therefore unlikely that consent has been freely given in all the circumstances of that particular situation."

It is therefore presumed that consent has not been freely given when the performance of a contract, including the provision of a service, is dependent on consent, even if such consent is not necessary for that performance (the emphasis is from the AEPD).

The proven facts regarding the processing of personal data constitute an infringement, attributable to the respondent, for violation of Article 7 of the aforementioned GDPR, by not allowing the user to give free consent to the processing of personal data.

VII

The respondent has expressed their disagreement with the content set forth in the grounds of the Proposal for Resolution.

1. They argue that the gym client has no obligation or need to use the Mywellness application developed by the gym equipment manufacturer Technogym, but that it is optional and completely voluntary. Therefore, it is not necessary to create an account to access the facilities, perform any type of exercise or activity therein, or to reserve classes or available machines at the Center, as this can be done by other means, including in-person reservations.

However, such arguments do not align with what the respondent themselves indicated throughout the procedure.

Firstly, as stated in the background of the resolution, the claimant did not provide any response to the question of whether to be able to perform...

C/ Jorge Juan, 6
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28001 – Madrid
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13/23

Reservations at said sports center required having a user account in the mywellness mobile application or on the website mywellness.com, and an indication, if not, of the procedure to be followed by a user to make reservations at said sports center.

Secondly, the respondent itself stated in a written document dated 02/09/2021 regarding the processing of health data that “the data required in the Mywellness app form aims to provide correct feedback to the user about their physical activity, as calories, or the weight to be managed on machines, among other parameters, depend on this data; sex, age, weight, build” and that “to make reservations in Mywellness, one must have a user account and therefore register, there is no option B.”

The same claimant states both in their complaint and subsequently on 24/01/2022 that “The reservation system is through an APP remotely and physically at the sports center with a wrist device. In both cases, a registration must be completed in which IT IS MANDATORY TO ACCEPT THE ASSIGNMENT OF HEALTH DATA.”

Finally, the absence of option B, as the respondent qualifies it, is deduced from the claimant's own document dated 11/10/2019 “...What is surprising is that option 1 (the claimant refers to the mandatory marking in the consent form for the use of confidential health-related data) is not an option because if it is not marked, it does not allow registration and therefore the application cannot be downloaded.

I contacted the person in charge of the center (...) who kindly attended to me and consulted with the company about the possibilities. Finally, they called me to inform me that changes could not be made. They proposed to me, with their best intention, a possibility that is not acceptable to me because all that achieves is to hide the problem and not comply with the mandatory LOPD.

It is not the purpose of my writing to analyze what happens with our personal data, whether health-related, economic, or habitual, and how it affects us, but what is unacceptable is that the center forces us to assign data to third parties if we do not want to; this is, from my point of view, a flagrant violation of the LOPD.”

Moreover, regardless of the above, any person who wished to optionally and voluntarily register in the application and create an account to access the services provided by the center would only be able to do so if they mark the form and mandatorily grant consent regarding the use of confidential health-related data, which in no case can be considered appropriate and relevant.

Therefore, the allegation cannot be admitted.

2. The respondent alleges a violation of the principle of proportionality in the imposed sanction.

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14/23

It should be noted that the principle of proportionality implies, according to reiterated jurisprudence of the TS, that there must be a proper adequacy between the severity of the act constituting the infringement and the sanction applied.

Well, given the circumstances present in this case, it is considered that the principle of proportionality has not been infringed in the determination of the sanction and that it is proportionate to the severity of the infringements committed, without any reasons being appreciated that justify a reduction of the imposed sanction, especially considering the amount to which it could rise in accordance with art. 83.5.a) of the RGPD, which provides for infringements of articles 5 and 7 of the RGPD.

Therefore, it is appropriate to dismiss this allegation.

VIII

The infringement attributed to the respondent is classified in article 83.5 a) of the RGPD, which considers that the infringement of “the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9” is sanctionable, in accordance with paragraph 5 of the aforementioned article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its article 72 considers for the purposes of prescription that they are: “Very serious infringements:

h. According to what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

c) The non-compliance with the requirements established by article 7 of Regulation (EU) 2016/679 for the validity of consent.

(...)”

IX

In order to establish the administrative fine that should be imposed, the provisions contained in articles 83.1 and 83.2 of the RGPD must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are in each individual case effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, due account shall be taken of:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/23

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any prior infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/23

In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in the present case for the infringement classified in Article 83.5.a) and Article 5.1.c) of the GDPR for which the respondent is held responsible, the following factors are considered concurrent:

The aggravating circumstances are:

- The nature and severity of the infringement, as it should not be forgotten that we are dealing with the principle of data minimization, the violation of which is considered very serious. It must be understood that individuals or entities that process personal data in their activities must ensure and take into account the purposes for which the data is collected, and the processing of excessive data must be restricted; in the processing operation subject to the complaint, personal data subject to special protection is affected; the number of individuals affected, since, although there is only one complainant, it seems evident that a considerable number of the entity's clients may have potentially been affected; the damage and harm caused to the complainant, since as a result of the incident, they had to file a complaint with the General Directorate of Consumer Affairs of the Autonomous Community (Article 83.2.a) of the GDPR).
- While it is not possible to assert that the entity acted intentionally or with malice, there is no doubt that it has incurred a serious lack of diligence. The processing of personal data carried out must correspond with a duty to exercise extreme diligence in order to guarantee the effective protection of the fundamental right at issue (Article 83.2.b) of the GDPR).
- The respondent entity has not been shown to have adopted measures to prevent similar incidents from occurring in order to remedy the infringement and mitigate its possible adverse effects (Article 83.2.c) of the GDPR).
- The categories of personal data affected by the infringement; as previously noted, the processing operation has affected data subject to special protection, such as health data (Article 83.2.g) of the GDPR).
- The link between the infringer's activity and the performance of personal data processing (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The mitigating circumstances are:

- It is a small business. Furthermore, according to its tax declaration, the pandemic situation experienced during the fiscal year 2020 has significantly affected the entity's accounts.

In light of the above factors, it is deemed appropriate to impose a sanction of 5,000 euros on the respondent for the violation of Article 5.1.c) of the GDPR.

Secondly, for the purpose of determining the amount of the fine to be imposed in the present case for the infringement classified in Article 83.5.a) and Article 7 of the GDPR for which the respondent is held responsible, the following factors are considered concurrent:

The aggravating circumstances are:

- The nature and severity of the infringement, as it should not be forgotten that we are dealing with the violation of consent, which is considered very serious, and it must be understood that individuals or entities in their activities proceed to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

requesting the consent of their clients must comply with the provisions of Article 7 of the GDPR; in the processing operation subject to the complaint, personal data subject to special protection is affected; the number of individuals affected, although there is only one claimant, it seems evident that a considerable number of clients of the entity may have potentially been affected; the damage and harm caused to the claimant, since as a consequence of the incident, they had to file a complaint with the General Directorate of Consumer Affairs of the Autonomous Community (Article 83.2.a of the GDPR).

- Although it is not possible to assert that the entity acted intentionally or with malice, there is no doubt that it has incurred a serious lack of diligence. The processing of personal data carried out must be matched with a duty to exercise extreme diligence in order to guarantee the effective protection of the fundamental right in question (Article 83.2.b of the GDPR).

- The entity being complained about has not adopted measures to prevent similar incidents from occurring in order to remedy the infringement and mitigate its possible adverse effects (Article 83.2.c of the GDPR).

- The categories of personal data affected by the infringement; as previously indicated, the processing operation has affected data subject to special protection, such as health data (Article 83.2.g of the GDPR).

- The link between the infringer's activity and the processing of personal data (Article 76.2.b of the LOPDGDD in relation to Article 83.2.k).

The following are mitigating circumstances:

- It is a small company. Furthermore, as derived from its tax declaration, the pandemic situation experienced during the year 2020 has significantly affected the entity's accounts.

In light of the above factors, it is deemed appropriate to impose a fine of 5,000 euros on the respondent for violating Article 7 of the GDPR.

III

The appellant in their appeal has alleged that the dispositive part of the resolution does not specify the classification for the purposes of the LOPDGDD; that the resolution generates defenselessness for them; that Article 5.1.c) of the GDPR has not been violated, as the processing of personal data carried out on their users is adequate, relevant, and limited to what is necessary, and regarding the violation of Article 7 of the GDPR, the users of the services are not obliged to consent to the processing of sensitive data.

- Firstly, regarding the claim that the appealed Resolution does not specify, in its dispositive part, what the classification is for the purposes of the LOPD-GDD, it should be noted that:

In the dispositive part, sections one and two, it is established that:

"The Director of the Spanish Agency for Data Protection RESOLVES:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FIRST: TO IMPOSE on GYMOOGIMNASIOS S.L., with NIF B86643772, a fine of €5,000 (five thousand euros) for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO IMPOSE on GYMOOGIMNASIOS S.L., with NIF B86643772, a fine of €5,000 (five thousand euros) for an infringement of Article 7 of the GDPR, classified under Article 83.5.a) of the GDPR.

(...)

In the present case, both in the proposal for resolution and in the resolution itself, the facts are classified as an infringement of both Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR, and an infringement of Article 7 of the GDPR, classified under Article 83.5.a) of the GDPR, sanctioning them with a fine of €5,000.

The facts, legal classification, and the amount of the sanction have not been modified in the

sanctioning resolution. The proposed infringement and the one ultimately imposed are the same, and although it is true that the dispositive part of the Resolution does not contain the classification of the infringement for the purposes of prescription, it is evident that the appellant was fully aware of what it was and has utilized the means of defense available to oppose them, thus no defenselessness has been caused.

Both in legal basis IV and in VIII, it was indicated regarding the cited infringements that Article 72 of the LOPDGDD considers them as very serious for the purposes of prescription.

Therefore, we must conclude in any case that the omission has not produced defenselessness and thus such allegation must fall.

- The appellant alleges defenselessness, as they have not been provided with the reasons that allow them to understand the basis of the resolution, which would enable them to articulate the corresponding appeals with the necessary guarantees; otherwise, it would undermine their possibilities of defense.

However, such a statement cannot be admitted either; it should be recalled that the National Court in numerous judgments, including that of 08/06/2005, states that: "To analyze the issue raised, it is appropriate to remember that in sanctioning matters, the Constitutional Court has established as one of the basic pillars for the interpretation of Administrative Sanctioning Law that the basic principles and guarantees present in the field of criminal law are applicable, with certain nuances, in the exercise of any sanctioning power of the Public Administration (STC 76/1990, of April 26, STS of January 23, 1998 (Rec of cassation 1650/1995, etc.).

Furthermore, the STC 18/1981 (legal basis second in fine) had already indicated that "the essential principles reflected in Article 24 of the Constitution, in procedural matters, must be applicable to the sanctioning activity of the Administration, to the extent necessary to preserve the essential values that underlie the precept and the legal certainty guaranteed by Article 9 of the Constitution, because the guarantee of constitutional order requires that the agreement be...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/23

adopted through a procedure in which the alleged defendant has the opportunity to provide and propose evidence and to argue what is appropriate to their rights." Also, within the European framework, it is established that the imposition of sanctions, including administrative fines, must be subject to sufficient procedural guarantees in accordance with the general principles of Union Law and the Charter, including the right to effective judicial protection and to a process with all guarantees.

The appellant, notified of the initiation agreement, has had the opportunity to examine the file by requesting the documents that comprise it and the actions taken prior to the opening of the procedure, to know the documents that comprise it and the facts that motivate its initiation, to make allegations that they consider pertinent to their defense and propose evidence, etc.

On the other hand, in addition to the minimum content of the Initiation Agreement, it includes the designation of the Instructor/a, and, where applicable, secretary/a, with an indication of their recusal regime, the competent body to resolve, an indication of the allegedly committed infringement, and the possible sanction that may correspond.

Furthermore, in the very resolution being appealed, Foundation VII also contains the response to the allegations regarding the Proposal for Resolution; a different matter is that it was not in the sense intended by the appellant.

Thus, it was pointed out that their argumentation did not align with what was indicated throughout the procedure nor with the facts considered proven.

The respondent had indicated regarding the treatment of health data that "the data required in the Mywellnes app form aims to provide correct feedback to the user about their physical activity, since the calories, or the weight related to handling machines, among other parameters, depend on this data; sex, age, weight, build" and that "to be able to make reservations in Mywellnes, one must have a user account and therefore register in it, there is no option B."

This absence of option B, as the respondent described it, was derived from the claimant's own writing dated 11/10/2019 "...The surprising thing is that option 1 (the claimant refers to the mandatory marking in the consent form for the use of confidential health-related data) is not an option since if it is not marked, it does not allow registration and therefore the application cannot be downloaded. I have contacted the person in charge of the center (...) who kindly attended to me and consulted with the company about the possibilities. Finally, they called me to inform me that changes could not be made. They proposed to me, with their best intention, a possibility that is not acceptable to me since all that achieves is to hide the problem and not comply with the mandatory LOPD.

It is not the purpose of my writing to analyze what happens with our personal data, whether health, economic, or habitual, and how it affects us, but what is unacceptable is that the center forces us to give our data to third parties if we do not want to; this is, from my point of view, a flagrant violation of the LOPD."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
20/23

Furthermore, any person who wishes to optionally and voluntarily register in the application and create an account to access the services provided by the center can only do so if they check the form and obligatorily grant consent regarding the use of confidential health-related data, which in no case can be considered appropriate and relevant.

In the registration form for the center, it is indicated that the payment of the fee includes a series of services and activities:

1. Collective services in the fitness area.
2. Access to group classes included in the general fee.
3. Access to free swimming in the pool.

The appellant states that the user is not obliged to use the application; rather, the user can optionally and voluntarily create an account to benefit from the services provided by the center, having the option to reserve a scheduled activity, a class, or a specific machine among those available, ensuring the user of its availability on a specific day and time, and, in addition, many more personalized and specific services, including certain services related to the equipment of the company Technogym.

Therefore, in the event that the user decides to create an account in the application, they also have the possibility to access the services that are included in the benefits agreed upon by the parties, as well as access additional and personalized services related to their physical activity.

However, it is not true, as the appellant stated, that even making a reservation through the application, the only information required for this specific purpose is the identity and the time of the reservation.

What precedes can only be possible if you obligatorily grant consent regarding the confidential health-related data for the purposes of service provision and, in addition, authorize the processing of personal data for marketing and advertising purposes, even in collaboration with third parties.

The application is merely a tool that facilitates the center in managing the physical space, clientele, employees, etc., including in its functionalities services, scheduled activities, group classes, schedules, reservations, messages, notifications, offers, training sessions, etc.

Through it, clients can reserve an activity at any time and accessible from any device via the web, primarily through mobile or computer, an online reservation system that allows optimizing the business, an instrument that enables having an organized agenda, reminders, notifications, managing reservations based on existing availability, etc.

However, to use this instrument, it is necessary to create an account, and the center's form indicates that:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
21/23

"I have read and understood the Privacy Policy

(<https://www.mywellness.com/sanbenito/Terms/Privacy>) and the Terms of Use

(<https://www.mywellness.com/sanbenito/Terms/Conditions>).

I hereby give my consent for the use of my confidential health-related data for the purposes of service provision*.

I authorize the processing of my personal data for marketing and advertising purposes, including in collaboration with third parties.

*Mandatory

However, what happens if you do not grant consent regarding the confidential health-related data for the purposes of service provision and, in addition, authorize the processing of personal data for marketing and advertising purposes, including in collaboration with third parties?

Well, you cannot access the indicated functionalities since you will not be able to use the application, being obliged to access the facilities and book activities in person either at the reception of the center or by phone if you want to enjoy any of the scheduled activities, classes, or services covered by that main contract, which will be quite difficult because normally all those activities will be reserved online, putting you in a situation of inequality with the rest of the users who do have the application incorporated into their devices.

Nevertheless, although it is true, as the appellant indicates, that it is not mandatory to create an account and use the application to enjoy and book the activities offered at the center, being able to do so in person, what is paradoxical is that regardless of those additional and personalized services offered by the center, to make reservations, participate in group classes, or services included in the main contract, if the user decides to register in the application and open an account, they are obliged to consent regarding confidential health-related data for the purposes of service provision and, in addition, authorize the processing of personal data for marketing and advertising purposes, including in collaboration with third parties.

Therefore, although providing certain personal data is unnecessary and irrelevant, if these are not provided, it may mean that the company does not provide the services requested by the users.

Now, if the intention is to offer a series of services that are not covered by the main contract, such as loading training sessions, monitoring sports progress, reserving special equipment, etc., then an application may be necessary and precise for the provision of the same, in which access to particularly sensitive data, such as health data, is necessary and mandatory.

However, it is not possible for users to be required to create an account for the use of the application for the provision of services that are included in the main contract (collective services in the fitness area, access to group classes included in the general fee, access to free swimming in the pool)."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/23

binding it necessarily and mandatorily to grant consent for the use of health data.

Therefore, the appellant has violated Article 5.1(c) of the GDPR, as the processing of personal data carried out by its users or clients is neither adequate, nor relevant, nor limited to what is necessary in relation to the purposes for which they are processed, making it inappropriate to modify what was already stated in the contested resolution regarding the admission of no violation of the aforementioned article, classified under Article 83.5(a) of the GDPR and considered for prescription purposes in Article 72.1(a) of the LOPDGDD.

In the same way, the appellant has violated Article 7 of the GDPR, classified under Article 83.5(a) of the GDPR, considered for prescription purposes in Article 72.1(c) of the LOPDGDD.

IV

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,
The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST:

TO DISMISS

the appeal for reconsideration filed by GYMOOGIMNASIOS S.L. against the resolution of this Spanish Agency for Data Protection issued on June 21, 2022, in file RR/00445/2022.

SECOND: TO NOTIFY this resolution to GYMOOGIMNASIOS S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1(b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/23

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3(a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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